

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

The Democratic Socialist Republic of
Sri Lanka

COMPLAINANT

Vs

Court of Appeal No:

CA/HCC/0263-264/2024

High Court of Colombo

Case No: HC/8178/2016

1. Mihelle Gedera Don Romesh Lasantha
2. Rupasinghe Arachchilage Gayan
Dushantha
3. Pathiranage Asiri Uchitha Perera
4. Ekanayake Mudiyanseelage Duleeka
Bandara
5. Rupasinghe Arachchilage Dushantha
Priyankara alias Loku

ACCUSED

AND BETWEEN

1. Rupasinghe Arachchilage Gayan
Dushantha
2. Rupasinghe Arachchilage
Dushantha Priyankara alias Loku

APPELLANTS

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Gayal Kalatuwawa for the Appellants.**
Hiranjan Peiris, PC, ASG for the
Respondent.

ARGUED ON : **16/03/2026**

DECIDED ON : **30/06/2026**

JUDGMENT**P. Kumararatnam, J.**

The above-named Accused-Appellants (hereinafter referred to as the Appellants) along with three other Accused were indicted in the High Court of Colombo as follows:

1. Between the period of 16th February 2008 and 30th March 2008, at Grandpass within the jurisdiction of this court, the 4th and 5th Accused with the now deceased Ekanayake Mudiyanseelage Wijisiri Bandara, did agree to commit or abet or act together with a common purpose for or in committing or abetting an offence to *wit*, the murder of Mohideen Mohamed Jawahir alias “Jabr Nana” and thereby committed the offence of conspiracy, in consequence of which conspiracy the said offence was committed; and that you have thereby committed an offence punishable under Section 113B of the Penal Code read with Section 296 and 102 of the said Code.
2. That on or about the 30.03.2008 the accused named in the indictment and with some others unknown to the prosecution were members of an unlawful assembly armed with a deadly weapon with the common object of causing hurt to Mohideen Mohamed Jawahir alias “Jabar Nana” thereby committing an offence punishable under Section 141 of the Penal Code.
3. At the same time and same place and in the course of the same transaction the accused with others unknown to the prosecution committed the murder of Mohideen Mohamed Jawahir alias “Jabar Nana” and as the member of the said unlawful assembly committed such offence in the prosecution of the common object of the unlawful assembly, or such as the members of that assembly knew to be likely

to be committed in prosecution of that object; and the Accused continuing to be members of the same unlawful assembly at the time of committing such offence, thereby committing an offence punishable under Section 296 read with Section 146 of the Penal Code.

4. At the same time and same place and in the course of the same transaction the accused with others unknown to the prosecution committed the murder of Mohideen Mohamed Jawahir alias “Jabar Nana” thereby committing an offence punishable under Section 296 read with Section 32 of the Penal Code.

The trial commenced before the Judge of the High Court of Colombo as the Appellants and other Accused had opted for a non-jury trial. After the conclusion of the prosecution’s case, the Learned High Court Judge had called for the defence. The Appellants and other Accused had made dock statements and had denied the charges. After considering the evidence presented by both parties, the learned High Court Judge convicted the Appellants on the 4th charge and sentenced them to death on 15.02.2023.

They were acquitted from the 1st-3rd charges.

As no sufficient evidence was led against the 1st, 3th and 4th Accused, the Learned High Court Judge had acquitted them from the case.

Being aggrieved by the aforesaid conviction and sentence, the Appellants preferred this appeal to this court. For clarity, the arraignment of the Appellants in the High Court Trial is as follows:

1st Appellant (2nd Accused in the indictment)

2nd Appellant (5th Accused in the indictment)

The Learned Counsels for the Appellants informed this court that the Appellants had given consent for this matter to be argued in their absence.

Further, at the time of argument the Appellants were connected via the Zoom platform from prison.

Background of the Case.

In this case PW3, Fathima Sharmila, the daughter of the deceased and PW4, Nimal Siri Rukshan, a friend of the deceased gave evidence as eye witnesses to the incident.

According to PW3, on the day of the incident at about 11.30pm she was with the deceased after serving the dinner. When she was standing near a flower tree, the 2nd Appellant and 1st Appellant with several others had arrived, and the 2nd Appellant had cut the deceased's neck with a machete. She also said that she saw the 1st Appellant cutting her father. When this incident was happening, she was dragged to a nearby house by someone for her safety.

PW4, a friend of the deceased was there at the time of the incident. While he was cutting bread, the Appellants with the 1st Accused and several others had come there and the 2nd Appellant had cut the deceased with a machete while shouting that the deceased was the person who betrayed him by giving information to the Grandpass Police for his arrest. According to this witness, the Appellants are brothers and both of them had engaged in cutting the deceased. He identified a Knife which was marked as P1, which was said to have been carried by the 1st Appellant at that time.

PW7 and PW6 were called to give evidence with regard to the arrest of the Appellants and the recovery of the knife was marked as P1 under Section 27(1) of the Evidence Ordinance.

The JMO who conducted the postmortem of the deceased had noted 04 injuries on the deceased's body. The fatal injury was the severing of the head of the deceased which has caused the instant death of the deceased.

The 2nd Appellant was identified at the identification parade. The identification parade notes in respect of the 3rd Accused were admitted under Section 420 of the Code of Criminal Procedure Act No.15 of 1979. The Accused was acquitted from the case.

Having been satisfied that the prosecution had made out a prima facie case against the Appellants, the Learned Trial Judge had called for the defence and the Appellants had made dock statements and had denied the charges. The Appellants had separately canvassed their Appeal grounds through their respective Counsel.

The Appellants had filed the following grounds of appeal:

1. The Learned Trial Judge erred by failing to consider contradictions inter se made by the prosecution witnesses PW3 and PW4.
2. The Learned Trial Judge failed to consider matters favourable to the defence.
3. The Learned Trial Judge erred in concluding that the prosecution has proved the 4th charge beyond reasonable doubt against the 2nd Accused.

Hence, the case against every individual accused must be considered separately and that omnibus evidence of general character must be closely scrutinized in order to eliminate false or mistaken implications for innocent persons.

As the Appeal grounds raised by the defence are interconnected, all grounds will be considered together hereinafter.

The Learned Counsel for the Appellants strenuously argued that the evidence given by PW3 and PW4 is contradictory inter se and the benefit of doubt should be accrued to the Appellants.

In this case as stated earlier, PW3 and PW4 are eye witnesses to the incident. In this case no single contradictions were marked and no Single omissions were highlighted.

The pivotal role played by eyewitness testimony in criminal proceedings has been recognized. Such testimony acts as a fundamental element of the legal process, and would often be considered as the foundation of evidence. With such testimony, a number of difficulties arise; which could impact the outcome of cases and as such, increase the risk of wrongful convictions.

There has been various research on the potential factors that could affect the accuracy of eyewitness memory and identification. This includes factors such as the impact of stress in critical moments, differing perceptions and other such elements; such factors could potentially raise doubt on the reliability of recollections. Furthermore, memory itself cannot be considered as infallible; this is due to the fact that memory can be subject to a reconstructive process, and would be easily susceptible to suggestion and post event information. In other words, an individual's memory is not the same as a video recording. The act of remembering is contrary to popular belief that it is like playing back a recording; in reality, it is much more complicated. In the basic sense, memories are a collection of experiences, preconceptions, and other mental tricks to fill in gaps.

The importance of the quality of eyewitness testimony has been examined in relation to the subject of the identification of an accused after a delay, in the case of **Raj Kumar Bheema v. State of NCT of Delhi** 2025 INSC 1322 where it was held that:

“It is trite that the evidence of an eye-witness must be of sterling quality and unimpeachable character. It should not only inspire the confidence of

the Court but must also be of such a nature that is acceptable at its face value.”

In **CA/HCC/417/2018** decided on 14/03/2024 this court has held that:

Eyewitness testimony is one of the most important kinds of criminal evidence. In criminal cases, the judges regularly face the difficult but crucial task of evaluating eyewitness testimony. This sometimes means checking whether the witness’s story fits with other established facts of the case. However, the veracity of such a story cannot always be verified or falsified directly. In such cases judges will have to look at whether the statement comes from a reliable source.

Further, an eyewitness’s testimony is probably the most persuasive form of evidence presented in court, but in many cases, its accuracy is dubious. There is also evidence that mistaken eyewitness evidence can lead to wrongful conviction—sending people to prison for years or decades, even to death row, for crimes they did not commit.

In considering the evidence of an eye witness, the Court should look at the demeanour of the witness, the inherent probability of the account, any internal inconsistencies in the account, whether the account is consistent with previous statements by the witness, whether the witness has any bias against the accused or any family or group to which the accused belongs, whether the evidence at the crime scene supports the account, and whether the witness’s testimony is supported by the testimony of other witnesses. These factors are very important as the burden of proof is on the prosecution in all criminal cases.

In the case of **Kumara De Silva v Attorney General** [2010] 2 Sri LR 169, in relation to the credibility of an eyewitness, it was observed:

“Credibility is a question of fact, not of law. Appeal Court Judges repeatedly stress the importance of the trial Judge’s observations of the demeanour of witnesses in deciding questions of fact. The acceptance or rejection of evidence of witnesses is therefore a question of fact for the trial Judge, since he or she is in the best position to hear and observe witnesses. In such a situation the Appellate courts will be slow to interfere with the findings of the trial Judge unless such evidence could be shown to be totally inconsistent or perverse and lacking credibility.”

In the case of **Mehatar v State of Maharashtra** (2025 INSC 216) it was noted:

“No doubt that the conviction can also be based on the testimony of an interested witness. However, for doing so, the testimony of such a witness will have to be examined with greater caution and circumspection. If the evidence of such a witness is found to be reliable, then only the conviction could be maintained. Equally, even in a case of a sole witness, the conviction could be maintained if the evidence of such a witness is of sterling quality. However, when the evidence of a sole witness is found to be doubtful, then the Courts would always seek for some corroboration while maintaining the conviction.

Hence, in our opinion, it is a sound and well-established rule of law that the court is concerned with the quality and not with the quantity of the evidence necessary for proving or disproving a fact.”

The learned Counsel for the Appellant argued that the date of offence was not correctly mentioned by PW3 as per the indictment. In her evidence, PW3 had stated that the incident had taken place on 31.03.2008. PW2, wife of the deceased had stated that the incident had happened on 30.03.2008. In this case, according to the evidence, the incident had taken place at 11.30pm, just half an hour short of the date 31.03.2008. This cannot be considered as a inter se contradiction as the date of offence mentioned in the indictment is “On or around 30.03.2008” Further, it is important to note that PW3 had given evidence after ten and half years of the incident.

Learned Counsel for the Appellants argued that although, PW4 had said that the 2nd Appellant had uttered that the deceased was the person who betrayed him and given information to police, PW3 had not said this in her evidence.

In her evidence, PW3 had stated that the knife was in the hands of the 2nd Appellant, PW4 had said that the murder weapon was in the hand of the 1st Appellant.

Although, PW3 had named several persons that were with the deceased at the time of the incident, she had not mentioned the name of PW4 in her evidence.

An eyewitness cannot be reasonably expected to narrate every single fact in a criminal case, nor can be expected to recall every event to every minute detail. This is as such due to human memory being selective, and due to the limitations of perception. Human memory would fade and change over time, which would result in witnesses naturally forgetting certain details. Further, it is very rare for a witness to see the entire crime from the very beginning to the end, including the planning or aftermath.

In the case of **Balu Sudam Khalde and another Versus State of Maharashtra** AIR 2023 SC 1736 it was noted:

“When an eyewitness is examined at length it is quite possible for him to make some discrepancies. But courts should bear in mind that it is only when discrepancies in the evidence of a witness are so incompatible with the credibility of his version that the court is justified in jettisoning his evidence.

By and large a witness cannot be expected to possess a photographic memory and to recall the details of an incident. It is not as if a video tape is replayed on the mental screen.

The powers of observation differ from person to person. What one may notice, another may not. An object or movement might emboss its image on one person's mind whereas it might go unnoticed on the part of another.

By and large people cannot accurately recall a conversation and reproduce the very words used by them or heard by them. They can only recall the main purport of the conversation. It is unrealistic to expect a witness to be a human tape recorder.”

In the case of **Bharwada Bhoginbhai Hirji Bhai versus State of Gujarat** 1983 (3) SCC 217 it was held that:

“Ordinarily, a witness cannot be expected to recall accurately the sequence of events, which take place in rapid succession or in a short time span. A witness is liable to get confused, or mixed up when interrogated later on.”

As long as the inter se contradictions do not attack the core of the case, they should be disregarded by the court. In this case, the Learned High Court Judge had very correctly considered and dealt with those inter se contradictions in his judgment and given reasons as to why he disregards the so called inter se contradictions.

In the case of **The State Of Tamil Nadu vs Ponnusamy** (2026 INSC 507) it was held:

“No doubt, there are certain contradictions and omissions in their testimonies, however, mere presence of contradictions and omissions does not demolish the credibility of public witnesses, as long as they appear to be natural and are duly explained. The High Court appears to have proceeded on a presumption of falsehood and the findings in the impugned judgment are not based on concrete doubts; rather, the findings are based on suppositions and the Court’s own subjective assessment of how a public witness is supposed to depose before the Court.

When we say that every contradiction is not fatal, we essentially mean that every contradiction carries different weight and the weight is to be adjudged in light of the surrounding evidence and the peculiar facts associated with a witness, including the fact that a public witness is almost invariably out of his comfort zone while deposing before a Court of law, that too in a murder trial.”

In the case of **Joy Devaraj vs The State of Kerala** (2024) INSC 473 it was held:

“The appellant was required to demonstrate that the incongruities in the statements of the several eye witnesses shook the roots of their credibility. The threshold for disbelieving a witness is not mere discrepancy or inconsistency but material discrepancy and

inconsistency, which renders the account narrated by the witnesses so highly improbable that the same may safely be discarded altogether from consideration.”

In the case of **Gangadhar Behera v. State of Orissa**: (2002) 8 SCC 381 it was noted:

“Normal discrepancies in evidence are those which are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental disposition such as shock and horror at the time of occurrence and those are always there however honest and truthful a witness may be. Material discrepancies are those which are not normal, and not expected of a normal person. Courts have to label the category to which a discrepancy may be categorized. While normal discrepancies do not corrode the credibility

The Learned Counsel for the Appellants contend that when a person is facing a serious criminal charge it is essential that every point in favour of the Accused placed before the trial judge should be considered, and if any of those create a reasonable doubt, the benefit of such should be accrued to the Accused.

In this case the Learned High Court Judge considered all the evidence placed before him impartially. Therefore, it is incorrect to say that the evidence favourable to the Appellants was not considered by the Court.

Finally, the Learned Counsel for the Appellants contends that the murder charge against the 2nd Accused was not proved beyond a reasonable doubt.

The evidence given by PW3 and PW4 very clearly revealed that the 2nd Appellant is the person who cut the deceased's neck. The evidence also transpired that the 1st Appellant also armed with a knife cut the deceased. The Learned High Court Judge discussing the law of common intention had very correctly convicted the Appellants in this case.

In this case the Learned High Court Judge had very well considered and analysed all the evidence placed before him to arrive at his decision.

The appeal grounds raised by all the Appellants are, therefore, not successful.

Due to the aforesaid reasons, I affirm the conviction and the sentence dated 15/02/2023 imposed on the Appellants by the Learned High Court Judge of Colombo.

Therefore, the Appeal is dismissed.

The Registrar of this Court is directed to send this judgement to the High Court of Colombo along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL